

This branch of the jurisdiction will require some further Orders to render the practice clear and certain.

The new rule on the subject is the following :—

No Bill for discovery merely shall henceforward be filed, except in aid of the prosecution, or defence, of an action at law.

1850.
XLIX.
Bill of Dis-
covery.

“The Bill is commonly used in aid of the jurisdiction of some Court of Law, to enable the party who prosecutes, or defends an action at law, to obtain a discovery of the facts, which are material to the prosecution or defence thereof.” *Story's Equity Pleadings, sec. 311.*

“In general it seems necessary, in order to maintain a Bill of Discovery, that an action should be already commenced in another Court, to which it should be auxiliary. There are exceptions to this rule, as where the object of discovery is to ascertain who is the proper party, against whom the suit should be brought. But these are of rare occurrence.” *Story's Equity Jurisprudence, v. 2, sec. 1483.*